



CHAPTER xi.

An Act to enable the British Red Cross Society and the Grand Priory of the Order of the Hospital of Saint John of Jerusalem in England to apply to the public advantage the residue of their property acquired for the purposes of the present war and for other purposes.

A.D. 1918.

[27th June 1918.]

WHEREAS Her late Majesty Queen Victoria by Royal Charter dated the fourteenth day of May one thousand eight hundred and eighty-eight incorporated the Grand Priory of the Order of the Hospital of Saint John of Jerusalem in England (hereinafter called "the Order of Saint John") as a body politic and corporate with the object (amongst other things) of encouraging and promoting all works of humanity and charity in the relief of sickness distress suffering and danger without distinction of race class or creed and aiding the sick poor and the sick and wounded in war:

And whereas His late Majesty King Edward the Seventh by Royal Charter dated the third day of September one thousand nine hundred and eight incorporated the British Red Cross Society as a body politic and corporate for the primary object of furnishing aid to the sick and wounded in time of war and empowered the society to receive and accept donations endowments and gifts of money lands stocks funds and other assets for the purpose of aiding the sick and wounded in war and to make and carry out any arrangement for joint working or co-operation with any other association or body carrying on similar work and to sell dispose of or otherwise deal with any property of the society:

[*Price 3d.*]

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Act, 1918.

A.D. 1918. And whereas by two agreements dated the twenty-fourth day of October one thousand nine hundred and fourteen and the eighth day of July one thousand nine hundred and fifteen the British Red Cross Society and the Order of Saint John established a Joint Committee (hereinafter called "the Joint Committee") for the purpose of joint work during the war and established a joint fund for the like purpose:

And whereas the British Red Cross Society and the Order of Saint John and the Joint Committee and branch societies working in conjunction therewith have collected large sums of money for the purpose of aiding the sick and wounded during the present war and have acquired lands in the United Kingdom and abroad and erected or aided in erecting hospitals and have purchased equipment and appliances and other property for the same purpose:

And whereas it is believed that the property so acquired after it can no longer be usefully employed for the purpose of aiding the sick and wounded during the war will in many cases be impossible of realisation but might be applied to useful purposes if powers were granted as hereinafter provided:

And whereas it is expedient that the other powers hereinafter provided should be conferred upon the British Red Cross Society the Order of Saint John and the Joint Committee respectively:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. 1. This Act may be cited for all purposes as the Red Cross and Order of Saint John Act 1918.

Power to use property for relief of distress in allied countries and in British Empire. 2.—(1) Notwithstanding any provision contained in the said charters or in any appeal for subscriptions or gifts the British Red Cross Society the Order of Saint John and the Joint Committee respectively may at any time during or after the termination of the present war apply or use any property acquired for the purpose of aiding the sick and wounded during

the present war which cannot in the opinion of such society order or committee as the case may be usefully be applied or used for that purpose for the purposes following or either of them (that is to say):— A.D. 1918.

- (A) In relieving sickness suffering or distress caused by the present war in the British Empire or in any of the countries which now are or have been during the present war in alliance with His Majesty the King whether by subscriptions or gifts to persons or to societies or to the Governments of those countries for the purpose of such relief; or
- (B) In relieving sickness and suffering within the British Empire whether by subscriptions or gifts to persons or to societies or to local authorities or to the Government of any British possession for the purpose of such relief.

(2) Any society or persons who have received grants or other assistance from the British Red Cross Society the Order of Saint John or the Joint Committee may with the consent of such society order or committee as the case may be and with the approval of the Charity Commission exercise the like powers or transfer to the Joint Committee any property so received from the society order or committee as the case may be to be applied or used under the powers of this Act.

(3) The Joint Committee may acquire by purchase or otherwise by agreement any property which may in their opinion be usefully acquired for the purpose of such application or use as aforesaid and may apply or use the same accordingly and if they acquire such property under any trust within the powers of this Act may execute such trust.

(4) If any chattel has been lent to the British Red Cross Society or the Order of Saint John or the Joint Committee for use during the war and the return of such chattel has become impracticable or difficult the Charity Commission may authorise the Joint Committee to acquire such chattel on the payment of such compensation as the Charity Commission may determine and thereupon such chattel shall become the property of the Joint Committee and no claim or demand shall be made in respect thereof.

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Act, 1918.

A.D. 1918. (5) Section 16 of the Charitable Trusts Act 1853 shall apply to the British Red Cross Society the Order of Saint John and the Joint Committee as if they were trustees within the meaning of that section.

(6) Land acquired under the charter of the British Red Cross Society or under the provisions of this Act and which shall not be actually in use for hospital purposes shall be sold within fifty years from the termination of the present war or such extended time as may be determined by the Charity Commission.

Saving. 3. Save as hereinbefore expressly provided nothing in this Act contained shall affect the status position or powers of the British Red Cross Society or the Order of Saint John under their respective charters or authorise the continuance of the Joint Committee beyond the period necessary for exercising the powers conferred upon them by this Act.

Definitions. 4. In this Act—

“The Joint Committee” means the Joint Committee as for the time being constituted under the said agreements dated the twenty-fourth day of October one thousand nine hundred and fourteen and the eighth day of July one thousand nine hundred and fifteen or any agreements amending the same;

“Property” includes real and personal property and any estate and interest in any property real or personal and any debt and anything in action and any other right or interest whether in possession or not and whether situate in the United Kingdom or elsewhere.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
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